

Module 2: Renaissance and Early-Modern Political Theory — from Cosmopolis to *Stato* to the Social Contract

Political & Economic Thought — Master Notes · by Jakob V. Stangel

Readings: McClelland, *A History of Western Political Thought*, ch. 11 (Hobbes, pp. 191–228) · Grotius (Boisen, *Political Thinkers*-style chapter) **Focus:** Thomas Hobbes: *Leviathan and the social covenant* · Hugo Grotius *and the world system of states*.

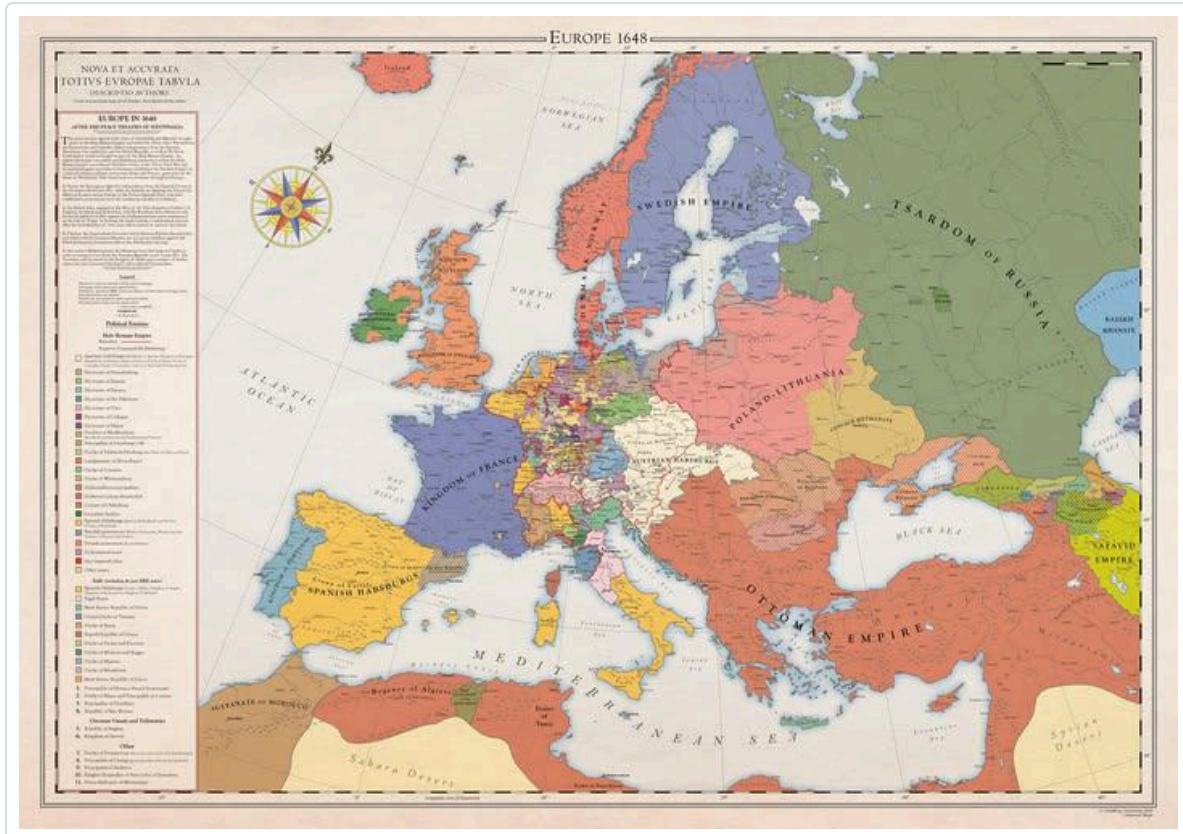
Theme of the module: the long shift from the medieval **Cosmopolis** (one universal Christian moral-legal order — Module 1's Aquinas) to the modern world of **sovereign states**. Three moves: **Machiavelli** frees politics from morality and invents the autonomous *stato* → **Hobbes** gives that state a **contractual foundation** and a *science* of absolute **sovereignty** → **Grotius** builds the **world system of states** bound by **natural law** (the birth of international law).

★ **The heart of the module — each thinker in one idea** (keep these in view):

- **Machiavelli → the *stato*:** politics is its own domain, freed from ethics; built on a fixed, pessimistic view of human nature.
- **Hobbes → the social covenant:** from a **state of nature** ("war of all against all") rational egoists **covenant with each other** to authorise an **absolute sovereign** (Leviathan) — anything less collapses back into war.
- **Grotius → the world system of states:** a **natural law** of universal rights & duties (binding "even if God did not exist") governs sovereigns too — grounding property, the free sea, and a **just-war** international order.

Lecture frame (Popp-Madsen — from the deck). (*The deck is the skeleton; the readings below add the flesh.*)

- **The big story — how political power kept being re-grounded:** Greek antiquity = politics is part of **ethical life** (the *zoon politikon*, the good life) → **Middle Ages** = the **Church** is the authority, religion supplies the rules, **God is the ultimate sovereign** → **17th-century early modernity** = the ground shifts to **power, conflict and self-interest**, and to **political institutions and the state**. Hobbes and Grotius are the thinkers of that last shift.
- **The Westphalian system** (the world Hobbes & Grotius write into): after 1648 Europe becomes a set of **sovereign states**, each with ① **exclusive sovereignty over its own territory**, ② **non-interference** in others, and ③ **legal equality** of states — and crucially **no supranational authority** above them (a rejection of the Catholic Church and Holy Roman Empire). *In plain terms:* the map stops being one Christendom and becomes a patchwork of independent states that recognise **no boss above them**.
- **The hinge between the two thinkers:** Hobbes solves order *inside* the state (domestic anarchy → sovereign). **But what governs the space between sovereign states**, where there is no super-sovereign? That gap is exactly what **Grotius** tries to fill with international law.



How to read it (the Westphalian map). Each colour is a sovereign state after 1648. The takeaway isn't the individual borders but the **pattern**: Europe is now a **mosaic of many independent sovereigns** — the fragmented **Holy Roman Empire** (centre) is a jumble of statelets — with **no emperor or pope ruling over the whole**. This is the "international anarchy" Hobbes says has no cure and Grotius says can be tamed by a **law of nations**.

McClelland — Hobbes: *Leviathan* and the Social Covenant

Chapter résumé

McClelland reads Hobbes's *Leviathan* (1651) as "*the first masterpiece of social-contract theory*" — yet a deeply **untypical** one: contract language was invented to justify *resistance*, but Hobbes turns it into an argument for **absolute government**, "driving a coach and four through all the libertarian conclusions." Written amid the **English Civil War**, it builds the state **geometrically** from a bleak view of human nature: from a **state of nature** ("war of every man against every man," life "solitary, poor, nasty, brutish, and short"), self-interested **rational egoists** reason their way to a **covenant** transferring their unlimited **Right of Nature** to a **Sovereign** who is *not himself a party* to the contract — and whose power must therefore be **absolute and undivided**, because anything less slides back into the **state of nature**.

★ The heart: Hobbes's chain — **state of nature** (war of all against all) → the **Right of Nature** is a curse everyone would shed → reason's **Law of Nature** says "seek peace" → so men **covenant with each other** to authorise one **Sovereign** (who stays outside the deal) → sovereignty must be **absolute & undivided**, or you're back in the war.

The red thread. Read the whole argument as a **geometry**: the *axiom* is man as a **rational egoist**; the *theorems* are the Laws of Nature, the Social Contract, and absolute Sovereignty. For any step ask: *how does self-interested fear drive it, and why does it force the conclusion that the sovereign must have everything?*

Key concepts / "modes" to use

- State of nature — no government → "war of all against all."
- Right of Nature (a *permission*: unlimited liberty to preserve yourself) vs Law of Nature (a *command* of reason: seek peace).
- **The social contract / covenant** — every man with every man; the sovereign is **beneficiary, not party**.
- **Sovereign / Leviathan** — the "mortal god"; **authorisation** ("what my agent does, I do"); **absolute & undivided**.
- Iniquity vs injury · sovereignty by institution vs acquisition · the efficiency constraint.

Section-by-section main points

| The Machiavelli bridge — the autonomous *stato*

Core: Machiavelli supplies the ground Hobbes builds on — **politics as its own domain**, cut loose from morality and religion, resting on a fixed, pessimistic view of human nature.

- The Prince: no natural law, no scripture — Machiavelli simply "treats those assumptions as if they were not there." He wants **axioms that always work**, so he assumes men are "always very bad" ("heads he wins, tails he doesn't lose").
- **Fear over love** — "*treat everybody as a potential assassin*"; better to be feared than loved (Caligula's *Oderint dum metuant* — "let them hate, provided they fear"). **Virtù vs Fortuna**: skill meeting luck. (McClelland: "*Machiavelli anticipates Hobbes*.")

| Hobbes's method — a geometry of man

Core: Hobbes builds politics like **Euclid** — from axioms about human nature to theorems — using the **new science** (matter in **motion**).

- **Materialist psychology**: humans are objects in **motion** (appetite/aversion); happiness is continual motion, not Aristotle's "rest." **Rational egoists** — Macpherson's "possessive individualists," "market-men" (the striking claim: "*a rising bourgeoisie requires an absolutist state*").

| The state of nature — the war of all against all

Core: strip away government and you get **rough natural equality** → mutual fear → a **war of all against all** — a *disposition* to fight, not constant battle.

- *In plain terms*: imagine no police, no courts, no laws. Since **anyone can kill anyone** (even the weakest can kill the strongest by stealth or in their sleep), nobody can ever feel safe. Everyone reasons that their **only security is to strike first / dominate others** — but everyone is thinking the same, so you

get permanent mutual suspicion. It's "war" not because people fight all the time, but because the **threat never lifts** (like bad weather: not constant rain, but a settled *inclination* to storm).

- **Equality:** "no man is so strong that he cannot be killed by another by stealth" → everyone is a threat. Three drivers: **competition** (gain), **diffidence** (fear/safety), **glory** (reputation). "*Part of man's nature is anti-social, while the other part can only be satisfied through social living.*"
- **War as a condition:** "*the nature of War consisteth not in actuall fighting, but in the known disposition thereto.*" The famous verdict: life is "**solitary, poore, nasty, brutish, and short.**"

Right of Nature vs Law of Nature

Core: the **Right** of Nature is a *permission* (do anything to survive); the **Law** of Nature is a *command* of reason (**seek peace**) — and reason tells you to *give up* the unlimited right.

- **Right of Nature** = unlimited liberty of self-preservation — but since *everyone* has it, it's "a millstone" you'd be wise to shed.
- **Law of Nature** (a "precept found out by reason" forbidding self-destruction): 1st — "**seek peace, and follow it**"; 2nd — **lay down your right to all things, as far as others will too**. In the state of nature these bind *in foro interno* (in conscience) but not *in foro externo* (in act) — no one dares go first.

★ The social contract (Hobbes's "**covenant**") — how you escape the state of nature

Core: the way out of the war is a **social contract** — Hobbes calls it a **covenant**: you **can't make law by agreement** (who'd go first? who'd enforce it?), so instead everyone **agrees to authorise a law-giver**. Every person covenants with every other to hand their Right of Nature to one **Sovereign** and back whatever he does.

- **What the social contract actually is (plain terms):** each individual, *of their own free will*, says to all the others: "**I give up my right of governing myself to this man (or assembly), on condition that you do the same.**" Hobbes's own words: "*I authorise and give up my right of governing myself to this man, or to this assembly of men, on this condition, that thou give up thy right to him, and authorise all his actions in like manner.*" In one stroke a **multitude of separate wills becomes one will — the sovereign's** — and each person has **traded a slice of freedom for security**. The contract is **horizontal** (among equals) and **voluntary**.
- **Hobbes turns social-contract theory on its head (Popp-Madsen).** *Before* Hobbes, the social contract was used to **limit** rulers (the ruler may only do what the contract permits → grounds for resistance). Hobbes uses the *same* device to do the **opposite** — to justify the **unlimited** power of the sovereign and the political *passivity* of subjects. To **break** the contract is therefore **unjust and illegitimate**.
- **The key twist:** the covenant is **of every man with every man** — **NOT with the sovereign**. The sovereign is the **beneficiary, not a contracting party**, so *he makes no promise and can never "breach" the contract*. Everyone makes the leap into civil society **except the sovereign, who stays in the state of nature**.
- **Authorisation / representation:** the people **authorise everything the sovereign does** → "*what my agent does, I do... his will is my will.*" A people has a will **only through its representative** (the sovereign).

- Institution vs Acquisition: by **covenant** (the paradigm case) or by **conquest** (the ordinary historical case) — same result, because **fear doesn't invalidate a contract** ("all contracts are made through fear"; the man on a sinking ship "very willingly" throws his goods overboard).

The Sovereign / Leviathan — absolute, undivided, a "mortal god"

Core: the commonwealth is **Leviathan**, an "artificial man" / "mortal god"; because the sovereign is authorised by all, his power must be **absolute and undivided**.



How to read it (the *Leviathan* frontispiece, 1651). This one picture is Hobbes's argument. The **giant sovereign** is literally **made of the multitude** — hundreds of individuals whose authorisation composes his body (the "artificial man"). He towers **over the land** (he holds the peace of the whole commonwealth), and he grips **both swords of power at once: a sword** (civil/temporal authority, left) **and a bishop's crosier** (religious/spiritual authority, right) — Hobbes's point that sovereignty must be **undivided**, ruling church *and* state. The Latin banner (Job 41) reads "*there is no power on earth to compare with him.*" The panels below mirror the two powers — civil (castle, crown, cannon) vs ecclesiastical (church, mitre, thunderbolts of excommunication).

- **Sovereignty is an *office of the state*, not the ruler's personal privilege (Popp-Madsen).** Hobbes describes the **rights of the office of sovereignty (i.e. the *state*)**, not the "advices" a particular ruler should follow. *In plain terms*: he's defining what **the position of Sovereign** may do — whoever fills it — not giving one king personal tips. This is why he says he founds **modern political thought**, and why the deck asks: "**Is Hobbes the first liberal?**" — his absolute state is built from **individuals' voluntary choices**, and the powers belong to the **institution**, not the person.
- **Iniquity vs injury** (crucial): the sovereign, being a man, *can* act wickedly (**iniquity**) — but he can never do a subject an **injury** (an *unlawful* act), because he makes the law and the subject authorised him → "the supposed injury is something I have done to myself."

The attributes of sovereignty. McClelland lists **eleven** (the deck highlights the starred ★ ones) — all *deduced* from the covenant, and all belonging to the **office**, not the person. They are more absolutist than "even the most absolute of contemporary kings" claimed:

#	Attribute	What it means
1	Repudiates all prior covenants	The founding contract cancels every earlier deal — <i>including any "covenant with God"</i> (no religious limit on the sovereign).
2	★ Cannot forfeit sovereignty	The sovereign can never lose his authority — true by the definition of the contract.
3	Majority binds; may compel dissenters	A majority suffices; anyone who refuses stays in the <u>state of nature</u> , where the sovereign may compel — or kill — them.
4	★ Cannot be judged / do an "injury"	Being authorised by all, he can't act <i>unlawfully</i> toward a subject (iniquity ≠ injury); he cannot be judged .
5	★ Cannot justly be put to death by subjects	To execute him would be to punish them for their own act.
6	★ Censorship of opinion	He controls what may be taught/said for peace — and even fixes the meaning of "just" and "unjust."
7	★ Decides religion & forms of worship	He settles public worship (vital when people "were prepared to kill each other" over salvation).
8	★ Ultimate judge — all courts are his courts	One uniform justice; rival courts breed the insecurity men fled.
9	★ War-and-peace power	"The sword of justice is also the sword of war" — the <i>ultima ratio regis</i> ; the heart of sovereignty.
10	Chooses & dismisses his ministers	He may <i>seek</i> advice, but no one has a right to advise him.
11	★ Grants (and revokes) nobility	"Aristocracy is the sovereign's creation."

- **Plus the umbrella rule (deck):** *every* action must be done **in the name of the sovereign** (authorisation) — and these are **attributes of a political office, not advice to an individual ruler**.

- **The only right you keep = self-preservation:** "no man is obliged to walk unbound to the scaffold." Otherwise a rational man sheds his Right of Nature entirely.

Why absolutism — anything less collapses into war

Core: you can't limit the sovereign by contract, and you can't set up a judge over him without an infinite regress ("why stop at three?") that ends in "the state of nature by another name."

- Stark disjunction: "*Either you choose to live under a Sovereign or you don't*" — divided/limited sovereignty just breeds rival sovereigns → **civil war**.
- **The real (non-legal) limit — the efficiency constraint:** the sovereign's *powers* are unlimited but his *power* (capacity to enforce) is not. Order holds **only while subjects fear the sovereign more than they fear each other**; when that reverses, "the rebellion has already happened internally."
- **International anarchy:** "*covenants without the sword are but breath*" — with no super-sovereign over states, there's no peace between them (McClelland: why the League of Nations/UN are "bound to fail"). (*This is exactly the gap Grotius tries to fill.*)
- (Aside — the **political-obligation controversy**: does Hobbes give only **prudential** reasons to obey, or a real **moral** duty? If the Laws of Nature are genuinely **God's commands**, obligation is moral; if "*mere dictates of prudence*," you obey only when watched.)

Cases & examples

- **English Civil War (1642–51):** each attribute of sovereignty maps onto a live dispute — control of the **army/militia** (the 1642 trigger), **religion**, the **Common Law** "ancient constitution," the sale of honours. *Leviathan* was double-edged: usable by Charles I, Cromwell, and Charles II.
- **The Norman Conquest:** Hobbes implies William was "a true Sovereign by the free consent of the defeated English" at Hastings — demolishing the Whig "Norman Yoke" story (sovereignty by acquisition).
- **Grimmelshausen's *Simplicissimus* / the Thirty Years War** — the real-world picture of the state of nature (many sovereigns fighting for mastery).

Key terms

Term	Meaning
State of nature	Life without government → "war of all against all"
Right of Nature	<i>Permission</i> : unlimited liberty to preserve yourself
Law of Nature	<i>Command</i> of reason; 1st = seek peace
Social covenant	Every man with every man authorises a sovereign
Sovereign as beneficiary not party	Why the sovereign can't "breach" the contract
Leviathan / "mortal god"	The commonwealth as an artificial person
Authorisation	"What my agent does, I do" — a people wills only via its sovereign
Iniquity vs injury	Wickedness (possible) vs an <i>unlawful</i> act (impossible to a subject)
Institution vs acquisition	Sovereignty by covenant vs by conquest
Efficiency constraint	Order lasts only while subjects fear the sovereign most

Exam pointers

- Run **Hobbes's chain** cold: state of nature → right vs law of nature → **the covenant of every man with every man** → absolute sovereign.
- Nail *why* the sovereign is **beneficiary, not party**, and what follows (no breach, no right of resistance beyond self-preservation).
- Explain the iniquity vs injury distinction and the **regress argument** for why sovereignty can't be divided.
- Be able to reel off the attributes of sovereignty (censorship, religion, ultimate judge, war, nobility, can't-be-judged...) — and stress they are powers of the **office/state**, not the person.
- Use "*covenants without the sword are but breath*" to link Hobbes to the **international** problem Grotius addresses.

Grotius — Natural Law and the World System of States

Chapter résumé

Hugo Grotius (1583–1645), Dutch jurist, aimed to "*formulate a set of universal rights and duties that would secure peace by constraining states in their internal and external relations.*" Amid the confessional chaos of the Thirty Years War he **rehabilitated natural law** on a **minimal, universal** basis everyone could accept, and applied it to the relations *between* sovereigns — earning him the title "**father of modern international law.**" His key move: natural law's obligatory force holds "even if God did not exist" (*etsi Deus non daretur*); from human **natural rights** (self-preservation, and the derived rights of **property** and

punishment) he builds an order of sovereign states bound by a **law of nations** and a theory of **just war**. Unlike Hobbes, Grotius holds humans are **naturally sociable**.

★ **The heart:** there is a **universal natural law** — knowable by reason, binding even "if God did not exist" — that gives individuals **natural rights** (self-preservation → property → punishment) and applies **equally to states**. That's the foundation of the **world system of states**: free seas, property from occupation, and a **just-war** order in which even war is subject to law.

The red thread. Grotius scales **one idea** — **universal natural law/rights** — **up from individuals to states**. For each topic ask: *what does natural law permit or require here, and how does that constrain sovereigns?* Keep contrasting with **Hobbes**: same self-preservation start, but Grotius's humans are **sociable**, his natural law is genuinely **obligatory**, and his sovereign *can* be bound.

Key concepts / "modes" to use

- **Natural law** — universal, immutable principles; known **a priori** (right reason) & **a posteriori** (agreement of nations); source = God, content = human nature.
- **The "impious hypothesis"** (*etsi Deus non daretur*) — natural law binds even if God did not exist.
- **Natural rights** (subjective — a *power* one "has"): self-defence & self-preservation → **property & punishment**.
- **Mare Liberum** — the free sea as a **state of nature** (grounds free navigation & trade).
- **Appetitus societatis** — humans are **naturally sociable** (vs Hobbes).
- **The world system of states + just war** (four just causes) + the right to punish.

Section-by-section main points

Natural law — secularised and universal

Core: natural law = **universal, unchanging moral principles**, the same for everyone everywhere, that we work out by **reason** — a *minimal* moral basis everyone could accept *despite* Europe's ferocious religious splits.

- **In plain terms:** Grotius wanted a set of moral rules so basic that **Catholics, Protestants and non-Christians could all agree on them**, so they could settle disputes without first agreeing about God. That's the whole point of grounding law in **reason + human nature** rather than in one church's doctrine.
- **How we know its content** — **two routes: a priori** (by **right reason**, deduced from our rational and social nature) *and* **a posteriori** (by looking at the rules "to which all civilised nations subject" — because "*a universal effect requires a universal cause*").
- **Dual foundation** — **reason and God, each standing alone:** its **content** comes from human nature; its **obligatory force** rests on *both* right reason *and* God, "each independently able to carry the weight." Grotius explicitly loosens the medieval tie — natural law is not simply part of God's "eternal law" (contrast **Suárez**, who put the Ten Commandments inside natural law).
- * (Background debate he sidesteps — **voluntarism vs intellectualism**: is a thing good *because God wills it* (voluntarism) or does *God will it because it is good* (intellectualism)? Finnis reads Grotius as

mediating: the **content** of natural law can be worked out on its own, but its **binding force** still comes from the divine will.)

★ The "impious hypothesis" — *etsi Deus non daretur*

Core: the famous line — natural law "*would take place, though we should even grant... that there is no God.*" Its obligatory force seems **independent of God's existence**.

- *In plain terms:* Grotius runs a **thought-experiment** — "*pretend*, just for argument, that there's no God: the basic moral rules would **still** hold." The point isn't to deny God; it's to show the rules are **so solid that people who disagree about religion can still all accept them**. That's how you get a law everyone in a war-torn, multi-faith Europe can share.
- **The qualification (don't miss it):** the *very next sentence* names God as Creator "to be obeyed in all things" — so it's **not atheism** (his translator Barbeyrac was "so perturbed" he added a footnote insisting on God). **Haakonssen/Boisen:** it's a **deliberately vague device** to lift natural law *above* confessional quarrels, not a metaphysical denial. **Source of the law = God; contents = human nature.** (*This is the move that starts to secularise natural law — hugely influential.*)

Natural rights — the *suum*, and rights as a power

Core: rights are **derived from facts about human nature** (chiefly sociability); a **subjective right** is "*something the individual possesses*" — a **power (*potestas*) over oneself** (liberty) or a claim over others/things. Grotius is "the first to give a systematic account of **subjective** natural rights."

- *In plain terms — the big shift:* the old idea of "right" meant "**the right thing to do**" (an objective rule out there). Grotius flips it to a right as **something you have** — a personal power/possession you can point to and claim ("*this is mine, my liberty, my property*"). That "**rights as possessions**" idea is the seed of the whole modern language of individual rights. Grotius's own words: a right is "*a moral Quality annexed to the Person, enabling him to have, or do, something justly.*"
- Man is by nature **free and *sui iuris*** (= *his own master, subject to no one*); the starting point is the ***suum*** ("*one's own*" — your life, body, liberty, possessions). **Two primary rights:** self-defence & self-preservation → **two secondary claim-rights:** property and punishment (these are the **four rights that can justify war**).
- **Rights are limited by a duty** not to injure others: "*the very nature of injustice consists in nothing else but the violation of another's rights.*" (He separates **justice = respecting others' rights** — what law can enforce — from **higher virtues** like generosity/mercy, which it can't; the state secures the first, not the second.)

The Free Sea (*Mare Liberum*) — the sea as a state of nature

Core: the **sea can't be owned** — it's "by nature open to all"; the high seas function like a state of nature, grounding a natural right to **free navigation and trade**. (*Mare liberum* = "free sea," against *mare clausum* = "closed sea.")

- *In plain terms:* the sea is different from land. **Land** you can physically **occupy** and fence off, so (by agreement) it can become private property. **The sea can't be occupied or fenced** — so it stays **everyone's**, and no state may shut others out of it. Hence **freedom of navigation and trade for all**.

- **Why it was written — the *Santa Catarina* / VOC:** a defence of the Dutch **breaking Portugal's monopoly** in the East Indies → a natural-law argument for **free international trade** (Grotius: undisturbed **commerce** is "part of the very fabric of humankind").
- **He demolishes Portugal's three claimed rights — possession, navigation, trade:**
 - **Possession:** distinguishes **occupation from discovery** — "*first sighting is not a claim to title*." You can only claim what was **nobody's (*res nullius*)** before; but the East Indies **weren't** nobody's — **native rulers already possessed their lands** (echoing **Vitoria**: the Spanish "got no more authority over the Indians... than the Indians would have over the Spaniards" had they sailed to Spain). Nor could a **papal grant** (Alexander VI's 1493 bulls) give title — the pope has no temporal authority over non-Christians.
 - **Navigation & trade:** "*God gave all things not to this man or that but to mankind*"; "**no man hath the power to grant a privilege against mankind**." So the sea stays common and trade can't be lawfully blocked.
- **vs Hobbes:** Grotius uses the state of nature **not to explain political authority** (as Hobbes does), but as a *device* to model the **norms of the high seas** — same concept, different job.

Property — occupation vs *dominium*

Core: we have a God-given **common use-right** (occupation) by nature; **private property (*dominium*)** is a **human convention** requiring agreement and law.

- "*God gave all things not to this man or that man, but to mankind*." Property is "an invention of societies." The question isn't *how to justify* private property (Locke's later question) but *the conditions under which it's permissible* — with a **right of necessity** (in extreme hardship you may access another's property) that puts **natural rights above civil rights**.

Sociability — *appetitus societatis* (the anti-Hobbes)

Core: humans have a natural **desire for society (*appetitus societatis*)** — an inclination to live peaceably with their own kind. This is Grotius's fundamental break from Hobbes.

- *In plain terms:* where **Hobbes** starts from people who are basically **dangerous to each other** (→ you need an all-powerful sovereign to keep the peace), **Grotius** starts from people who **naturally want to live together** peaceably (the Stoic *oikeiōsis*). So Grotius flatly rejects the line that "every creature only seeks its own private advantage." Same starting concern (self-preservation), **opposite view of human nature** → a much less absolutist politics.
- **Sociability is "thin," on purpose.** Because man is sociable, **keeping social order is fundamental to law** — but critics (Haakonssen, Harvey) call it a "**meagre**," **leave-others-alone** sociability: essentially *leave others to the enjoyment of their *suum* as long as they leave you to yours*. That thinness is deliberate — a **minimalist** account that avoids taking sides on *what the good life is* (again, to sidestep religious quarrels). We're also pushed together by **need** ("our lack of things").
- **Politics is built by voluntary agreement** — natural jurisdiction lies with the **individual**, "not a king or a pope." **Troubling corollary:** because you own your liberty, Grotius says you may **contract it away** — even into **slavery/servitude** (to escape death, debt or conquest). This let **Rousseau** brand him "**an apologist for absolutism**"; and Grotius allows only a **narrow right of resistance** — reserved for when the sovereign **breaks the founding contract**.

★ The world system of states — just war & the right to punish

Core: universal natural law applies **equally to states**; a **law of nations** with authority to arbitrate wars makes an ordered **society of states** — and even war is **subject to law**.

- *In plain terms:* Grotius's big claim against Hobbes — the space *between* states **need not be lawless**. Law rests on **human rationality**, not on a sovereign's will, so **the same natural law that binds individuals binds states too**, even though there's no world government to enforce it. That's the birth of **international law**.
- ***The Rights of War and Peace* (1625):** subject international relations, incl. war, to the **rule of law**. War is "*an instrument of right... undertaken for the sake of peace*": **just = the execution of a right; unjust = the execution of an injury**. "*Where the methods of justice cease, war begins.*"
- **Four just causes of war (*jus ad bellum*):** ① **self-defence** · ② **self-preservation** · ③ **recovery of property / a debt** · ④ **punishment**. (*A state has a right but only an "imperfect duty" to punish — it may act, but isn't obliged to.*)
- **Restraint in war (*jus in bello*):** a middle ground (*temperamenta*) between Erasmus's pacifism (which "bends the crooked stick too far the other way") and **unlimited war** — "just wars are those wherein rules are observed."
- **The right to punish** (central to international order): derived from natural law (not mere revenge). Against Vitoria (who said conquistadors *couldn't* punish the American Indians for want of jurisdiction), Grotius argues "*war may be waged against those who sin against nature*," since nature "*has jurisdiction over the whole of mankind*." But he **warns against using punitive war as a pretext** ("civilising barbarous peoples"), and punishment must be **forward-looking/deterrent**, not vengeful (Plato: "no wise man punishes because an offence was committed, but that it may not be committed again").

★ **Worked example — Grotius's just war today: UN Article 51 & Putin's Ukraine war (from the deck).** Grotius's categories are *still the language of modern international law*. **UN Charter Article 51** guarantees "the inherent right of individual or collective **self-defence** if an armed attack occurs" — Grotius's just-cause ① in treaty form. Lawyers add two Grotian-style limits for **anticipatory self-defence**: **necessity** (the threat is imminent, no peaceful option) and **proportionality** (response fits the threat). **Putin (24 Feb 2022)** framed the invasion of Ukraine *precisely in this vocabulary*: he claimed "we have been left with **no other way to defend Russia**," invoked "**Article 51 of the UN Charter**," said the Donbas "People's Republics" had **appealed for help** (collective self-defence), and cast the war as **punishment** ("prosecution of those who committed crimes," "de-Nazification"). → *This is exactly the danger Grotius flagged: the just causes (**self-defence** and **punishment**) are the ones most easily turned into a **pretext**. Grotius gives you both the framework and the warning.*

Legacy

Core: "**father of international law**" (a title cemented by the 20th-c. jurist **Lauterpacht**; the term "international law" itself was coined by **Bentham**), and a pillar of the **social-contract tradition**.

- Influenced **Hobbes** (Tuck: Hobbes's philosophy is "a Grotian theory"), **Locke** (the natural right to **punish**), **Pufendorf**. *Contested legacy:* his **occupation/dominium** and **punishment** doctrines were later "invoked to rationalise European **empire**" — "empire is an inescapable feature of early-modern political thought."

Key terms

Term	Meaning
Natural law	Universal immutable principles; source = God, content = human nature
Impious hypothesis (<i>etsi Deus non daretur</i>)	Natural law binds "even if God did not exist"
Natural (subjective) right	A <i>power/potestas</i> one "possesses" over oneself or a claim on others
<i>Suum / sui iuris</i>	What is one's own / subject to no one (natural liberty)
<i>Mare Liberum</i>	The free sea — common to all, a "state of nature"
Occupation vs <i>dominium</i>	Common use-right (natural) vs private property (conventional)
<i>Appetitus societatis</i>	The natural human desire for society (vs Hobbes)
Just war (<i>jus ad bellum</i>)	4 just causes: self-defence, self-preservation, recovery/debt, punishment
Right to punish	Derived from natural law; enforces order among individuals & states
Law of nations / society of states	Universal natural law applied to sovereign states

Exam pointers

- Explain the impious hypothesis precisely (natural law "even if God did not exist") — and the qualification (not atheism; a universality device).
- Trace the **rights chain**: *suum* → self-preservation → **property** (occupation vs *dominium*) → **punishment**.
- Use *Mare Liberum* as the worked example (sea as state of nature → free trade).
- State the four just causes of war + the right to punish + Grotius's **restraint** (vs Vitoria; vs Erasmus).

★ Hobbes vs Grotius — the module's payoff

Core: both are pillars of **social-contract** theory and both start from **self-preservation** — but they split on **human nature**, and that split drives everything.

	Hobbes	Grotius
Human nature	Naturally in conflict → "war of all against all"	Naturally sociable (<i>appetitus societatis</i>)
Natural law	Reduced to self-security — the way out of the state of nature	Genuinely obligatory ; universal (binds "even if God did not exist")
State of nature — used for	To explain the origin of political authority	Not authority <i>per se</i> — a device (e.g. the free seas / justifying a war)
The sovereign & the contract	Sovereign is not a party → no breach, (almost) no right of resistance	Sovereign can be a party → a narrow right of resistance in extreme tyranny
Main worry	Domestic order (avoiding civil war)	International order (a law-governed society of states)
Legacy	Absolutism; the "science of the state"	International law; natural rights; (contested) empire

Where they meet: Grotius's line that there's no order without enforcement echoes Hobbes's "*covenants without the sword are but breath*" — but Grotius thinks natural law + sociability can bind sovereigns **without** a world-Leviathan, which is exactly what Hobbes denies.

★ Fun facts & memorable details

Sticky bits from Module 2 (Hobbes & Grotius).

Hobbes

- Life in the state of nature is "**solitary, poore, nasty, brutish, and short.**"
- The commonwealth is a "**mortal god.**"
- "**Covenants without the sword are but breath**" — Hobbes's one-line theory of international anarchy.
- "**Hobbes and Fear were born twins**" — born prematurely in **1588**, his mother's labour supposedly brought on by news of the **Spanish Armada**. Yet he was reportedly cheerful and **died at 91**; Charles II gave him a pension and enjoyed watching wits bait "**the Bear.**"
- He **discovered Euclid by accident** in a gentleman's library — and built *Leviathan* like a geometry.

Grotius

- The **impious hypothesis**: natural law would hold "*though we should even grant... that there is no God.*"
- **Child prodigy**: at the University of **Leiden** aged **11**; a law degree at ~16; Henry IV called him "*the miracle of Holland.*"
- **The book-chest escape**: sentenced to life in prison, he **escaped in 1621 hidden in a chest of books.**

- The **VOC** hired him to justify seizing the Portuguese carrack *Santa Catarina* — a prize worth ~**3 million guilders** ($\approx$ the entire annual revenue of the English government that year).
 - "**International law**" as a term was coined by **Bentham**; Grotius's "father of international law" title was cemented by the 20th-c. jurist **Lauterpacht**.
 - He **died in 1645 after surviving a shipwreck** on the way home from serving Queen Christina of Sweden.
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